

reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (Id., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator’s fees will be considered at final approval.

Similarly, the requested representative payment of \$10,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. The Court notes there is nothing in Ms. Nash’s declaration describing the amount of time she has devoted to this case. That may be addressed in connection with the final approval hearing.

D. Conclusion

But for the question of the scope of the release, the Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval. Counsel shall be prepared to address the scope of the release at the hearing of this motion.

If the Court is satisfied with the proposed release or an amended version of it, and is therefore, prepared to give preliminary approval to the proposed settlement then counsel will be directed to prepare an order reflecting this tentative ruling, and determinations made at the hearing. Counsel shall also request a hearing date for a motion for final approval. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

10. 9:00 AM CASE NUMBER: C24-02017

CASE NAME: RAINY FISHER VS. RLW PROPERTIES, LLC

***HEARING ON MOTION IN RE: FOR FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM**

FILED BY: FISHER, RAINY DAY

***TENTATIVE RULING**

On November 20, 2025, Judge Weil ordered preliminary approval of the class settlement in this action. Now, plaintiff seeks final approval.

Judge Weil undertook a detailed review of the settlement agreement and found it to be “sufficiently fair, reasonable and adequate.” Subsequent events have only strengthened that conclusion. Class notice was properly given and only 23 notices were returned as undeliverable out of the 534 that were mailed; a low rate of approximately 4%. Of the 511 that were delivered, there were no opt outs

and no objections. Nor did any class member dispute the number of weeks worked.

Accordingly, the Court now gives final approval to the settlement of this class action. It approves the Gross Settlement Amount of \$410,000.00. Defendants shall fully fund the Gross Settlement Amount and also fund the amounts necessary to fully pay Defendants' share of payroll taxes in two installments. The two payments, totaling the Gross Settlement Amount, shall be made as follows: (1) \$205,000 to be paid 60 days after entry of judgment; and (2) \$205,000 to be paid 180 days after the first payment.

The Court approves the payment (1) to Class Counsel for attorneys' fees in the amount of \$136,666.67, (2) to Class Counsel for their litigation costs of \$28,000.00, (3) to the Administrator, Apex Class Action Administration, in the amount of \$17,200.00, and (4) to the Class Representative, Rainy Day Fisher in the amount of \$10,000 as an enhancement award.

The Court also approves the allocation of \$10,000.00 to the settlement of the PAGA claims, of which \$7,500.00 shall be payable to the Labor Workforce Development Agency ("LWDA") and \$2,500.00 shall be payable to the Aggrieved Employees.

Thus, the Net Settlement Amount is \$208,133.33 (in addition to the \$2,500 allocated to the employees under the PAGA claims) is fair, reasonable and adequate.

The "Final Order and Judgment Granting Final Approval of Class Action and PAGA Settlement and Request for Attorneys' Fees, Costs, and Class Representative Enhancement Award" is approved in all respects provided, however, that in accordance with Judge Weil's original determination, 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

A compliance hearing is set for December 2, 2026, at 8:30 a.m. in Department 16. Counsel shall file a declaration of the claims administrator regarding settlement distribution no later than November 18, 2026.

11. 9:00 AM CASE NUMBER: C24-02813
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: GOLDEN GATE BELL LLC

TENTATIVE RULING:

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's individual claims for civil penalties under the PAGA and to stay non-individual claims pending the outcome of that arbitration.

The motions are **continued to September 16, 2026 at 9:00 a.m.** for supplemental briefing.